

		However, Exhibit 2 is admissible as a business record and Ms. Otero has attested it is a true and correct copy of the borrower's loan payment history, which catalogs the borrower's completed and outstanding payments under the loan agreement. (See Otero Decl., ¶ 8.) None of the alleged deficiencies in the document change the fact that it is admissible. Further, Defendants have provided no evidence to support the assertion that the document was "created only for the purposes of this litigation." In their Opposition, Defendants cite to cases from federal 3rd Circuit and 11th Circuit for the proposition that Ms. Otero's declaration does not satisfy the personal knowledge requirement, and to cases from the 1st Circuit and 10th Circuit to support their contention that Ms. Otero's declaration does not lay out admissible evidence. However, federal procedural and evidentiary rules do not apply in state courts, and such rules cannot make inadmissible evidence that is admissible under the statutory and case law of this state. (See <i>Estate of Murphy</i> (1979) 92 Cal.App.3d 413, 426.) Plaintiff has met its initial burden on summary judgment and Defendants have failed to establish any triable issues of material fact as to the 1st or 2nd Causes of Action. The court therefore will grant summary judgment. Plaintiff shall give notice of this ruling.
9	Phillips vs. Nesbit 30-2022-01284894	<u>Motion for Leave to Amend</u> Plaintiffs Thomas Phillips'; Fashion Island Surgery Center, LLC's; and Thomas J. Phillips, M.D.'s Motion for Leave to File Fourth Amended Complaint is GRANTED. Plaintiffs Thomas Phillips; Fashion Island Surgery Center, LLC; and Thomas J. Phillips, M.D. shall file and serve the Fourth Amended Complaint by March 8, 2024. Defendant Alan Nesbit is GRANTED leave to file a demurrer and/or a motion to strike with respect to the Fourth Amended Complaint using the same

	reservation number as Defendant’s demurrer and motion to strike that are currently pending. As long as any demurrer and/or a motion to strike with respect to the Fourth Amended Complaint is filed and served in compliance with the Civil Procedure Code, they may be heard on May 20, 2024 at 8:30 a.m. in Department N15. Plaintiffs Thomas Phillips; Fashion Island Surgery Center, LLC; and Thomas J. Phillips, M.D. move for leave to file a Fourth Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts
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		are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) Prejudice that may support denying amendment includes “delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, it is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend”], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that “results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense.” (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971)
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		18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Pursuant California Rules of Court rule 3.1324(a), a motion to amend a pleading shall: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. In addition, California Rules of Court rule 3.1324(b) requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. <u>Proposed Amendment</u> On September 18, 2023, the court sustained with leave to amend Defendant Alan Nesbit's demurrer to the 1st Cause of Action for legal malpractice and 4th Cause of Action for breach of fiduciary duty of the Second Amended Complaint. (See ROA #69.) On September 27, 2023, Plaintiffs filed an Third Amended Complaint with a 1st Cause of Action for legal malpractice and a 2nd Cause of Action for breach of contract. (See ROA #73.) Defendant then filed a motion to strike the 2nd Cause of Action on the basis that adding a new cause of action for breach of contract was not within the court's leave to amend. (See ROA #75.) Plaintiffs now seek leave to file a Fourth Amended Complaint that adds the 2nd Cause of Action for breach of contract. In the 2nd Cause of Action, Plaintiffs allege that the parties entered into an independent contractor agreement on June 11,
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		2020, which Defendant breached by not procuring malpractice insurance. The 2nd Cause of Action of the Fourth Amended Complaint looks to the same set of core facts as the prior complaints – namely, Defendant’s legal representation of the Plaintiffs in the lawsuit against Carolina Brown, Mark Plummer, and the Law Offices of Mark Plummer. Plaintiffs seek only to add another legal theory upon which to seek compensation. Plaintiffs also note that Defendant will suffer no prejudice. The discovery burden will not substantially increase as the 2nd Cause of Action does not rely on a different set of facts. In addition, Defendant was apprised of the potential for the 2nd Cause of Action 5 months ago, when Plaintiffs filed the Third Amended Complaint and trial will not occur for another 8 ½ months. Thus, there has been no showing that the amendment will cause any delay in the trial. Defendant argues that the court should deny the leave to amend by arguing the sufficiency and validity of the proposed amended pleadings. These arguments are premature. After leave to amend is granted, Defendant may attack the amended pleadings on the merits. (See <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Defendant does not make any other arguments in opposition to the motion for leave to amend. Therefore the court will grant the motion. (fn.1) (fn.1) Plaintiffs have not complied with California Rules of Court, rule 3.1324. While the motion for leave to amend does identify the allegations that are proposed to be deleted or added, the supporting declaration does not state why the amended allegations are necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason for the delay in adding the 2nd Cause of Action. Further, Plaintiffs’ moving papers and reply papers do not contain a proof of service. However, Defendant does not take issue with these deficiencies or show that it was prejudiced by them. The court therefore finds these requirements were waived but encourages
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		Plaintiffs to carefully review all procedural requirements in the future. In order to avoid further delay in this case, the court will grant leave for Defendant to file a demurrer and/or a motion to strike with respect to the Fourth Amended Complaint that use(s) the same reservation number(s) as Defendant's demurrer and motion to strike that are currently pending. This will allow Defendant's demurrer and/or a motion to strike with respect to the Fourth Amended Complaint to be heard on the date of the pending demurrer and motion to strike – May 20, 2024 – as long as Defendant's demurrer and/or a motion to strike with respect to the Fourth Amended Complaint are filed and served in compliance with the Civil Procedure Code. Plaintiffs shall give notice of this ruling.
10	Torres vs. Fountain Valley Regional Hospital and Medical Center 30-2023-01311157	<u>Demurrer</u> Defendant Fountain Valley Regional Hospital and Medical Center's Demurrer to the First Cause of Action for Elder Abuse Contained in Plaintiff's First Amended Complaint is OVERRULED. Defendant Fountain Valley Regional Hospital and Medical Center shall file an answer or other pleading in response to the First Amended Complaint within 10 days of service of the notice of ruling. (See Cal. Rules of Ct. rule 3.1320(j).) Defendant Fountain Valley Regional Hospital and Medical Center (Defendant Hospital) demurs to the 1st Cause of Action for Elder Abuse of the First Amended Complaint (FAC) filed by Plaintiff Maria Guadalupe Torres. <u>Standard for Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)